

# Terms of Service and Booking

Mobile automotive maintenance and repair at the customer's location, booked online at [rennbros.com](https://rennbros.com), by telephone or by text message.

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| <b>Business</b>      | Renn Bros ("Renn Bros", "we", "us"), mobile tire and mechanical services                                                    |
| <b>Contact</b>       | (514) 891-7366 · <a href="mailto:info@RennBros.com">info@RennBros.com</a> · <a href="https://rennbros.com">rennbros.com</a> |
| <b>Service area</b>  | West Island of Montréal and Montérégie-Ouest (Rigaud to Dorval, down to Salaberry-de-Valleyfield)                           |
| <b>Governing law</b> | Laws of the Province of Québec and the federal laws of Canada applicable therein                                            |

**In short.** An online booking is a request until we accept it. We take a deposit of 20% of the estimate, taxes included, through Square. The prices shown are starting prices: if the job turns out to need more, we give you a written estimate and do nothing extra without your approval. You may cancel free of charge up to 24 hours before the visit; after that, we keep only the costs we actually incurred. Repairs carry the legal warranty of 3 months or 5,000 km, and the parts we supply carry our own 12-month warranty.

This summary is for convenience; the articles below govern. Nothing in these terms limits the rights you have under the *Consumer Protection Act* (CQLR, c. P-40.1) or the *Civil Code of Québec*.

## 1. Scope and definitions

1.1 These terms apply to every service Renn Bros provides to a consumer or a business, whether booked online, by telephone, by text message or in person. They form the contract between you (the "Customer") and Renn Bros, together with the booking confirmation, any written estimate and the invoice.

1.2 "Visit" means the time we spend at the Customer's location to perform the booked services. "Estimate" means the written estimate required by section 168 of the *Consumer Protection Act*. "Starting price" means the lowest price shown for a service on our website.

1.3 Where a provision of these terms conflicts with a provision of public order of Québec law, the latter prevails and the remainder of these terms continues to apply.

## 2. How a booking is formed

2.1 **Request.** When you send a booking through [rennbros.com](https://rennbros.com), you request a visit for the services, address and time you chose. Before you send it, the booking page shows you the services, their starting prices, the estimate with taxes, the deposit, the time and these terms, and lets you correct any of it.

2.2 **Acceptance.** The contract is formed when Renn Bros accepts your request. Acceptance is confirmed by email or text message, according to the preference you chose. We may decline a request, in particular if the address is outside our service area, the job cannot be done safely at the location, the vehicle requires work we do not perform, or the time is no longer available.

2.3 **Declined request.** If we decline your request, the deposit is refunded in full to the original payment method within 15 days.

2.4 **Copy of the contract.** In accordance with section 54.7 of the *Consumer Protection Act*, a copy of the contract, being the confirmation together with these terms, is sent to you within 15 days of acceptance in a format you can keep and print. These terms remain available at [rennbros.com/legal/terms](http://rennbros.com/legal/terms).

2.5 **Information you provide.** You must give accurate information about the vehicle, its location and the work requested. Incorrect information (wrong vehicle, wrong tire or rim size, inaccessible location) may require a new visit or a revised estimate.

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### 3. Services, prices and estimates

3.1 **Prices shown.** Prices on our website are in Canadian dollars, before GST (5%) and QST (9.975%), and include travel within our service area. Where a price is shown as a range or as “from”, the lower amount is the starting price for a standard vehicle and job. Hourly work is billed at the posted hourly rate, plus parts.

3.2 **Final price subject to inspection.** The final price may be higher than the starting price if, on inspection, the vehicle needs additional parts, labour or work (for example seized or worn components, a different part than expected, or a problem found during the service). In that case:

- a. we show you what we found and explain the work required;
- b. for any repair costing more than \$100, parts and labour included, we give you a written estimate before carrying it out (section 168 of the *Consumer Protection Act* and section 73 of its Regulation), unless you waive it in a document written in its entirety and signed by you;
- c. once accepted, the estimate is binding: we never charge more than it states, and we never carry out work it does not cover without your express authorization. If you authorize additional work by telephone or text, we record the date, the time and the name of the person who authorized it (sections 171 and 172 of the Act).

3.3 **Diagnostics.** Where a diagnostic fee applies, its amount is shown before the visit. If you go ahead with the repair we recommend, the diagnostic fee is credited against that repair.

3.4 **Estimate content.** As provided by section 170 of the Act, a written estimate states your name and address, our name and contact information, the make, model and licence plate of the vehicle, the nature of the repairs and the total price, the parts to be installed and whether they are new, used, reconditioned or rebuilt, the date of the estimate and how long it remains valid.

3.5 **Exempt work.** Under section 73 of the *Regulation respecting the application of the Consumer Protection Act*, work costing \$50 or less in total, and the installation of tires or a battery when the purchase and the installation appear on the same bill, are not “repairs” under the Act. Our own commitments in article 3.2(c) and our conventional warranty in article 7 nevertheless apply to every job.

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### 4. Deposit and payment

4.1 **Deposit.** An online booking requires a deposit equal to 20% of the estimate shown at booking, GST and QST included. The deposit is credited in full against the final invoice.

4.2 **Third-party payment processor.** All online payments are processed by Square Canada (Block, Inc. and its affiliates), an independent third-party payment processor. Renn Bros never receives or stores your full card number. Your payment is also governed by Square's terms and privacy notice:

[squareup.com/ca/en/legal/general/payment](https://squareup.com/ca/en/legal/general/payment), [squareup.com/ca/en/legal/general/ua](https://squareup.com/ca/en/legal/general/ua) and [squareup.com/ca/en/legal/general/privacy](https://squareup.com/ca/en/legal/general/privacy).

4.3 **Balance.** The balance (final price plus taxes, less the deposit) is payable when the work is completed, by credit or debit card, tap, Apple Pay or Google Pay, or by any other method we agree to in writing. The invoice is sent by email.

4.4 **Invoice.** The invoice states the information required by section 173 of the *Consumer Protection Act*, including the parts installed and their condition, the labour (hours and rate), the taxes, the total and the warranty.

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## 5. Changes, cancellations and missed visits

5.1 **By you, 24 hours or more before the visit.** You may move or cancel a visit free of charge. The deposit is refunded in full within 15 days, or carried over to a new date at your choice.

5.2 **By you, less than 24 hours before the visit, or missed visit.** You remain free to cancel at any time (article 2125 of the *Civil Code of Québec*). If you cancel less than 24 hours before the visit, or if we arrive and cannot perform the work because the vehicle, the keys or a safe place to work are not available, or permission to use the property is refused, Renn Bros may keep, out of the deposit, only the costs it has actually incurred: the travel already made to your address, the value of any work already performed and any non-returnable part ordered for you (article 2129 of the Code). We tell you the amount and how it was calculated, and refund the balance of the deposit within 15 days. No fixed penalty applies (section 13 of the *Consumer Protection Act*).

5.3 **Special-order parts.** Parts ordered specifically for your vehicle at your request that cannot be returned to the supplier are charged at cost if you cancel, provided you were told before the order that the part is non-returnable.

5.4 **By Renn Bros.** We may reschedule a visit for reasons beyond our control (illness, parts delay, unsafe weather, road conditions). We notify you as early as possible, and you choose either a new time or a full refund of the deposit. You never pay for a change we make.

5.5 **Distance-contract rights.** Nothing in this article limits your right to cancel under sections 54.8 to 54.16 of the *Consumer Protection Act*, where they apply.

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## 6. The visit

6.1 **Hours.** Visits take place Monday to Friday, between 8:00 a.m. and 5:00 p.m., and are scheduled so the work is completed by 5:00 p.m. Saturday visits are by arrangement. From 6:00 p.m. to 10:00 p.m., emergencies only (for example a dead battery or a jump start), by telephone or text message.

6.2 **Location.** The vehicle must be on a flat, safe surface where the work can be done lawfully: your driveway, a garage, or an office or business lot. You confirm that you have the right to have the work done at that location.

6.3 **Office and business parking.** If the vehicle is parked on property you do not own or control, you must obtain the permission of the owner, building management or security before the visit and accept our Office and Business Parking Consent and Disclosure. We may refuse or stop the work if access is refused or we are asked to leave; article 5.2 then applies.

6.4 **Weather and safety.** We work outdoors. We may postpone or stop work if weather, lighting, traffic, the condition of the vehicle or the surroundings make it unsafe. Renn Bros decides, acting reasonably, whether a job can be performed safely.

6.5 **Access and contact.** A person must hand over the keys and remain reachable by telephone during the visit. Please remove valuables from the vehicle.

6.6 **Replaced parts.** If you ask for them when you book or order the work, replaced parts are handed over to you when the work is done, except where the repair is free of charge, the part is exchanged for a re-tooled or reconditioned part, or the part must be returned to the manufacturer or distributor under a warranty (section 175 of the Act). Otherwise, replaced parts, used tires and fluids are taken away and disposed of or recycled responsibly.

6.7 **Services we do not perform.** We do not perform suspension, drivetrain, welding or exhaust work, or any work that requires a lift or a shop. We may refer you to a qualified shop.

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## 7. Warranty

7.1 Repairs are guaranteed for three months or 5,000 kilometres, whichever occurs first, from the time the vehicle is returned to you, parts and labour (section 176 of the *Consumer Protection Act*); this guarantee does not cover damage resulting from abuse after the repairs (section 177). The parts Renn Bros supplies and installs also carry our conventional warranty of 12 months from the date of the work. The full terms are set out in the Renn Bros Warranty, which forms part of this contract and is available at [rennbros.com/legal/warranty](http://rennbros.com/legal/warranty).

7.2 These warranties are in addition to, and never replace, the legal warranties of quality and of good working order provided by the *Consumer Protection Act* and the *Civil Code of Québec*.

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## 8. Vehicle condition and liability

8.1 We note any visible damage to the vehicle before starting work. We are not responsible for pre-existing defects or damage, or for failures of components unrelated to the work performed.

8.2 Renn Bros is responsible for damage caused by its fault in performing the work. Nothing in these terms excludes or limits our liability for bodily or moral injury, or for material injury caused intentionally or through gross fault (article 1474 of the *Civil Code of Québec*), nor any right that the *Consumer Protection Act* prevents us from limiting (section 10).

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## 9. Personal information

9.1 We collect and use your personal information only to provide the services, in accordance with the *Act respecting the protection of personal information in the private sector* (CQLR, c. P-39.1) and our Privacy Policy at [rennbros.com/legal/privacy](http://rennbros.com/legal/privacy).

9.2 Booking confirmations, reminders and service updates are transactional messages sent by the channel you chose (email, text message or both).

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## 10. Language

10.1 These terms are published in French and in English, and the French version is provided to you before you enter into the contract. By choosing to book in English, you expressly agree to be bound by the English version (section 55 of the *Charter of the French language*). *Les présentes conditions sont offertes en français et en anglais; la version française vous est remise avant la conclusion du contrat.*

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## 11. Complaints and disputes

11.1 Please contact us first at (514) 891-7366 or [info@RennBros.com](mailto:info@RennBros.com). We answer every complaint promptly and in writing if you ask.

11.2 You may also contact the Office de la protection du consommateur ([opc.gouv.qc.ca](http://opc.gouv.qc.ca), 1-888-672-2556). Any dispute is governed by the laws of Québec and falls within the jurisdiction of the courts of Québec, including the Small Claims Division of the Court of Québec.

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## 12. Changes to these terms

12.1 We may update these terms for future bookings. The version in force on the date your booking is accepted applies to that booking and is never changed unilaterally afterwards. The current version and its effective date are always published at [rennbros.com/legal/terms](http://rennbros.com/legal/terms).

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